

25CV07506 Brittanee Jackson, et al. v. Yardi Systems, Inc., et al.

County: santa-barbara

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Hearing date: 2026-09-23

Motion: CMC; Demurrer by Defendants to Complaint

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Tentative Ruling: Brittanee Jackson, et al. v. Yardi Systems, Inc., et al.

Case Number

25CV07506

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/23/2026 - 10:00

Nature of Proceedings

CMC; Demurrer by Defendants to Complaint

Tentative Ruling

For Plaintiffs Brittanee Jackson and Michael Stewart: Bryan Weir, David Rosenthal, Consovoy McCarthy PLLC

For Defendants Yardi Systems, Inc., and RentCafe, LLC: Abraham Tabaie, David Sarratt, James Schaefer, Debevoise & Plimpton LLP

RULING

As for the Demurrer: For all reasons stated herein, the demurrer of Defendants Yardi Systems, Inc., and RentCafe, LLC, to the complaint is overruled. On or before October 9, 2026, Defendants shall file and serve an answer to the complaint.

As for the CMC: This is a Class action complaint for violations of state common law (invasion of privacy), and California Penal Code Sections 631 (wiretapping), 632 (recording), and 638.51 (pen register).

The Court sets the following dates:

Pretrial Conference 9/22/27 at 11:30 am with jury panel to come over the next day; all trial documents due one week in advance.

MSC 9/3/27 in #5 at 8:30 am

Next CMC 4/21/27 at 8:30 am to discuss status of the discovery.

Background

On December 1, 2025, Plaintiffs Brittane Jackson and Michael Stewart (collectively, Plaintiffs) filed their complaint against Defendants Yardi Systems, Inc. (Yardi), and RentCafe, LLC (RentCafe) (collectively, Defendants), setting forth six causes of action (COAs) for: (1) violation of Penal Code section 631 Re Google Analytics, (2) violation of Penal Code section 631 Re Microsoft Clarity, (3) violation of Penal Code section 631 Re Meta Pixel, (4) violation of Penal Code section 632, (5) violation of Penal Code section 638.51, and (6) Common Law Invasion of Privacy.

As alleged in the complaint:

This action involves Defendants' wrongful interception and disclosure of

sensitive information. (Comp., ¶ 2.)

Yardi owns and operates RentCafe, which offers apartment search and management functions to millions of Americans through its website, RentCafe.com. (Comp., ¶ 3.) That website lets visitors search for properties, apply detailed filters to listings, and receive estimated rental pricing based on location and lifestyle factors. (Comp., ¶ 17.) Visitors often input their sensitive geographic and housing preference information into the site to access information and services. (Ibid.)

Defendants installed online tracking services—namely, Google Analytics, Microsoft Clarity, Meta Pixel, and Adnxs—on the RentCafe website, giving Google LLC (Google), Microsoft Corporation (Microsoft), and Meta Platforms, Inc. (Meta), access to Plaintiffs' and Class members' private financial and apartment search information without their knowledge or consent. (Comp., ¶ 4.)

Visitors also share highly sensitive details about their financial condition, including income and debt levels in RentCafe's Rent Affordability Calculator. (Comp., ¶ 18.) Users also share personal information, including name, email, phone, availability, and move-in plans when scheduling apartment tours on the RentCafe website. (Ibid.) Those visitors have a reasonable expectation that RentCafe will keep their information private. (Ibid.)

RentCafe embedded Google Analytics and DoubleClick Digital Marketing tools to capture visitors' information and share that information with Google. (Comp., ¶ 27.) Google Analytics also assigned unique tracking cookies to individual visitors to RentCafe's website that allowed their communications and activity on the website to be individually distinguished. (Comp., ¶ 30.)

Google Analytics' tracking occurred in real time as visitor's communications were happening. (Comp., ¶ 32.) Each time visitors communicated with RentCafe through its website, the Google Analytics source code RentCafe installed on its website caused visitor's communications to be simultaneously intercepted and transmitted to Google. (Comp., ¶ 52.) Google viewed, accessed, and used the information it received from RentCafe's website for its own purposes, including to provide advertising and other services to RentCafe and other Google Analytics customers. (Comp., ¶ 46.)

RentCafe has installed another potent tracking software on its website called Microsoft Clarity (Clarity). (Comp., ¶ 47.) Like Google Analytics, Clarity tracks visitors' activities on RentCafe's website by installing a certain type of code, JavaScript, into the long string of code (called HTML) that is generated whenever a user accesses a particular page on RentCafe's site. (Ibid.) That code allows Clarity to capture users' activities on the site and send them to Microsoft Azure, Microsoft's proprietary cloud service. (Ibid.)

RentCafe has installed a third potent tracking software on its website called Meta Pixel. (Comp., ¶ 64.) Meta Pixel allows website owners to track visitors' actions on their website and measure the effectiveness of advertising by adding Meta Pixel's source code to their website. (Ibid.) Once the Meta Pixel is deployed in a website's source code it redirects the information about actions taken by the user to Meta (parent company of Facebook). (Ibid.) This tracker is particularly invasive because Meta is able to identify individual users through the Meta Pixel. Meta intercepts visitors' data through a specific cookie named "c_user." (Comp., ¶ 65.) This cookie is directly linked to the user's Facebook profile if they have logged into their Facebook account on the same browser. (Ibid.) As a result, anyone with access to this cookie can easily locate and view the associated Facebook profile by appending the identifier to the Facebook URL. (Ibid.)

RentCafe has also installed the Adnxs tracker on its website. Adnxs collects visitors' personal information and IP addresses and surreptitiously shares it with the Xandr platform, which is part of Microsoft's advertising ecosystem. (Comp., ¶ 80.) Adnxs enables RentCafe to buy targeted digital ads from Microsoft and assess the effectiveness of those advertising campaigns. (Ibid.) By installing Adnxs on the RentCafe website, the tracker collects and transmits data to Microsoft, including visitors' IP addresses and other unique identifiers, later used for targeted advertising. (Comp., ¶ 8.)

Plaintiffs were harmed when they used RentCafe to search for apartments in California from 2022 through 2025 and input private information that was transmitted to third parties. (Comp., ¶¶ 105-137.)

The complaint alleges a putative class defined as: "All individuals within the applicable statute of limitations whose confidential, personally identifiable, or protected information or communications with RentCafe's website were intercepted by and improperly disclosed to Google, Microsoft, and Meta." (Comp., ¶ 141.)

On February 26, 2026, Defendants filed a demurrer to all COAs on the grounds that the complaint fails to allege sufficient facts to state a COA. Plaintiffs oppose the demurrer.

Analysis

(1) Legal Standard for Demurrer

" 'The rules by which the sufficiency of a complaint is tested against a general demurrer are well settled. We not only treat the demurrer as admitting all material facts properly pleaded, but also 'give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.' " (Zhang v. Superior Court (2013) 57 Cal.4th 364, 370 (Zhang), internal quotation marks and citations omitted.) "Because the function of a demurrer is to test the sufficiency of a pleading as a matter of law, we ... assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law. [Citation.] It is error for the trial Court to sustain a demurrer if the Plaintiff has stated a cause of action under any possible legal theory, and it is an abuse of discretion for the Court to sustain a demurrer without leave to amend if the Plaintiff has shown there is a reasonable possibility a defect can be cured by amendment." (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247 (California Logistics).) "[I]n ruling on a demurrer the trial Court may take into account in addition to the complaint itself any matter that may be properly considered under the doctrine of judicial

notice.” (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1133-1134.)

(2) Violations of Penal Code Section 631

“Any person who has been injured by a violation of this chapter [Penal Code sections 630 through 638.55] may bring an action against the person who committed the violation for the greater of the following amounts: [¶] (1) Five thousand dollars (\$5,000) per violation. [¶] (2) Three times the amount of actual damages, if any, sustained by the Plaintiff.” (Pen. Code, § 637.2, subd. (a).)

The first three COAs assert claims under subdivision (a) of Penal Code section 631, which punishes any person who: “[Clause One] intentionally taps, or makes any unauthorized connection ... with any telegraph or telephone wire, line, cable, or instrument ... [Clause Two] willfully and without the consent of all parties to the communication, or in any unauthorized manner, reads, or attempts to read, or to learn the contents or meaning of any message, report, or communication while the same is in transit or passing over any wire, line, or cable, or is being sent from, or received at any place within this state ... [Clause Three] uses, or attempts to use, in any manner, or for any purpose, or to communicate in any way, any information so obtained ... [or Clause Four] aids, agrees with, employs, or conspires with any person or persons to unlawfully do, or permit, or cause to be done any of the acts or things mentioned above in this section” (Pen. Code, § 631, subd. (a); see Comp., ¶¶ 152-225.)

At the outset of its analysis, the Court notes there is little or no California appellate law applying this statute under circumstances similar to those in the complaint. The Court will look to non-binding federal authority and the statute itself.

“Clause Two applies if [a] third-party ‘willfully and without consent of all parties to the communication, or in any unauthorized manner, reads, or attempts to read, or to learn the contents or meaning of any message, report, or communication while the same is in transit or passing over any wire, line, or cable, or is being sent from, or received at any place within this state[.]’ [Citation.] This statute has three requirements relevant here: (1) the absence of consent; (2) the [third-]party [requirement]; and (3) the ‘while ... in transit’ requirement. (Valenzuela v. Keurig Green Mountain, Inc. (N.D. Cal. 2023) 674 F.Supp.3d 751, 756.) As to the consent requirement, if a “[p]laintiff alleges she ‘was not informed’ her conversations were being ‘recorded, intercepted, or eavesdropped upon,’ and did not consent to monitoring by the third-party when she communicated with Defendant ... [t]hat is sufficient at this stage.” (Id. at pp. 756–757.) As to the third party requirement, “the question is whether the third party has ‘the capability to use its record of the interaction for [another] purpose.’ ” (Id. at p. 758, underline in original.) As to the while in transit element, “[t]he statute applies to messages intercepted ‘while the same ... is being sent from, or received at any place within this state.’ ‘While’ implies the interception must occur contemporaneous with the sending or receipt of the message.” (Id. at p. 759, italics in original.)

According to the complaint, “RentCafe employed Google to intercept the contents of Plaintiffs’ ... communications by installing Google Analytics on its website.” (Comp., ¶ 160.) “The data collected by Google Analytics, Microsoft Clarity, Meta Pixel, and Adnxs is automatically transmitted to those third parties, where it can be packaged for use in personalized advertisements, among other things.” (Comp., ¶ 6.) “Each time Plaintiffs and Class members entered a search term, clicked on a filter, or accessed a property in RentCafe’s property search portal, Google Analytics, Microsoft Clarity, and Meta Pixel automatically intercepted those communications and simultaneously sent an exact duplicate to Google, Microsoft, and Meta, respectively.” (Comp., ¶ 164.)

As alleged, “RentCafe intended to facilitate Google’s [] interception of Plaintiffs’ ... [personal] data.” (Comp., ¶ 163.) “RentCafe installed Google Analytics code on its website, allowing Google to access and track its visitors’ [including Plaintiffs’] sensitive communications through the site’s property search portal page.” (Ibid.) “Google tapped Plaintiffs’ and Class members’ electronic communications with RentCafe’s website in California while they were in transit.” (Comp., ¶ 164.) “Unbeknownst to visitors, while they were using RentCafe’s website, Defendants were tracking their communications with its website, collecting their personal information, and sending it to Google, Microsoft and Facebook.” (Comp., ¶ 26.) “The information Google intercepted from Plaintiffs ... has enormous market value Google uses the information gathered ... to improve its analytics insights and advertising services for RentCafe and other websites.” (Comp., ¶ 172.)

Defendants argue the complaint fails to allege willfulness under Clause Two and Clause Four because the complaint alleges that “Google recognizes the privacy risks inherent in a service that collects so much information on individual users. To mitigate the risk that sensitive or personal information is shared with Google through its software, Google urges its customers to take steps to prevent customer data from being collected through its software.” (Comp., ¶ 33.) Defendants argue that Google did not act willfully and therefore the claim under Clause Two and Clause Four fails. (See Demurrer, pp. 16, l. 5 – p. 18, l. 1.) Defendants further reason that if Google did not act willfully, the third-party requirement under Clause Two is not alleged.

The Court finds the complaint alleges sufficient coordination between Google and RentCafe, and alleges sufficient profit motivations and actions by Google. As alleged, “[b]y design, Google Analytics received and recorded the visitor’s activities on RentCafe’s website by attaching a particular string of code to communications between the visitor and the website.” (Comp., ¶ 28.) “Google Analytics’ tracking services are designed to be invisible to website visitors and can be detected only by delving into the website’s underlying source code.” (Ibid.) “Google viewed, accessed, and used the information it received from RentCafe’s website for its own purposes, including to provide advertising and other services to RentCafe and other Google Analytics customers.” (Comp., ¶ 46.) “The information Google, Microsoft, and Meta intercepted from Plaintiffs and Class members has enormous market value ... to those companies.” (Comp., ¶ 109.) “RentCafe intended to facilitate Google’s, interception of Plaintiffs’ and Class members’ data.” (Comp., ¶ 163.)

Under a reasonable reading of the complaint as a whole, the complaint alleges that Google (a third party) and RentCafe willfully and without consent of Plaintiffs, or in any unauthorized manner, agreed to capture Plaintiffs’ personal and private data. (Pen. Code, § 631, subd. (a).) The Court gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Zhang, supra, 57 Cal.4th 364 at p. 370.) “Also taken as true are facts that may be implied or inferred from those expressly alleged.” (State of California ex rel. Bowen v. Bank of America Corp. (2005) 126 Cal.App.4th 225, 239.)

The complaint contains sufficient allegations of willful or unauthorized actions by Defendants and Google without consent by Plaintiffs. (Pen. Code, § 631, subd. (a).) The complaint makes similar allegations as to Microsoft and Meta products. (Comp., ¶¶ 46-79.) “It is error for the trial Court to sustain a demurrer if the Plaintiff has stated a cause of action under any possible legal theory.” (California Logistics, Inc., supra, 161 Cal.App.4th at p. 247.) For all these reasons, the Court will overrule the demurrer as to Penal Code section 631.

(3) Violations of Penal Code Section 632

Penal Code section 632, subdivision (a), punishes any person who “intentionally and without the consent of all parties to a confidential communication, uses an electronic amplifying or recording device to eavesdrop upon or record the confidential communication, whether the communication is carried on among the parties in the presence of one another or by means of a telegraph, telephone, or other device, except a radio” (Pen. Code, § 632, subd. (a).)

As to Penal Code section 632, Defendants argue that the communications at issue are not “confidential.” (Demurrer, pp. 18, l. 9. – 19, l. 8.) A “confidential communication” is “any communication carried on in circumstances as may reasonably indicate that any party to the communication desires it to be confined to the parties thereto, but excludes a communication made in a public gathering or in any legislative, judicial, executive, or administrative proceeding open to the public, or in any other circumstance in which the parties to the communication may reasonably expect that the communication may be overheard or recorded.” (Pen. Code, § 632, subd. (c).) “[U]nder section 632 ‘confidentiality’ appears to require nothing more than the existence of a reasonable expectation by one of the parties that no one is ‘listening in’ or overhearing the conversation.” (Flanagan v. Flanagan (2002) 27 Cal.4th 766, 772, 776 (Flanagan).)

As alleged in the complaint, “RentCafe procured Google Analytics, Microsoft Clarity, and Meta Pixel to automatically eavesdrop and record Plaintiffs’ and Class members’ confidential communications regarding their property search, housing preferences, and financial boundaries.” (Comp., ¶ 232.) “Google Analytics, Microsoft Clarity, and Meta Pixel recorded Plaintiffs’ and Class members’ confidential communications with RentCafe’s website as they occurred, and therefore intercepted their communications in transit.” (Comp., ¶ 233.) “Plaintiffs and Class members have a reasonable expectation of privacy in the sensitive information they input into RentCafe’s website, including search terms and filters related to where to live. That sensitive information is now irretrievably in third parties’ hands.” (Comp., ¶ 265.) “Housing-related information is

uniquely personal, sensitive, and private.” (Comp., ¶ 267.) “Plaintiffs and Class members had a reasonable expectation that the property search, geographic information, and other information they entered into RentCafe’s website would not be tapped, read, or otherwise intercepted by Google, Microsoft, or Meta regardless of whether they were logged into the site, because they were communicating with RentCafe about their housing search and rental service needs.” (Comp., ¶ 238.) These allegations are sufficient at the pleading stage to meet the confidentiality requirement. (Flanagan, *supra*, 27 Cal.4th at pp. 772, 776.) The Court will overrule the demurrer to this COA.

(4) Violations of Penal Code Section 638.51

“Except as provided in subdivision (b), a person may not install or use a pen register or a trap and trace device without first obtaining a Court order pursuant to Section 638.52 or 638.53.” (Pen. Code, § 638.51, subd. (a).) Subdivision (b) of section 638.51 lists five purposes (not at issue here) for which “[a] provider of electronic or wire communication service may use a pen register or a trap and trace device.” (Pen. Code, § 638.51(b).)

“ ‘Pen register’ means a device or process that records or decodes dialing, routing, addressing, or signaling information transmitted by an instrument or facility from which a wire or electronic communication is transmitted, but not the contents of a communication....” (Pen. Code, § 638.50, subd. (b).) “ ‘Wire communication’ and ‘electronic communication’ have the meanings set forth in subdivision (a) of Section 629.51.” (Pen. Code, § 638.50(a).) Section 629.51, subdivision (a)(2), defines “electronic communication” as “any transfer of signs, signals, writings, images, sounds, data, or intelligence of any nature in whole or in part by a wire, radio, electromagnetic, photoelectric, or photo-optical system” (Pen. Code, § 629.51(a)(2).)

Defendants argue that the tracking technology used by Defendants is not a “pen register” because this statute only applies to telephone communications. The Court notes that Penal Code section 638.52 refers to “telephone lines” as to certain subparts in the context of peace officer applications. (Pen. Code, § 638.52, subd. (d).) Any order approving use by a peace officer of a “pen register or a trap and trace device” “shall specify all of the following: [¶] (1) The identity, if known, of the person to whom is leased or in whose name is listed the telephone line to which the pen register or trap and trace device is to be attached. [¶] (2) The identity, if known, of the person who is the subject of the criminal investigation. [¶] (3) The number and, if known, physical location of the telephone line to which the pen register or trap and trace device is to be attached and, in the case of a trap and trace device, the geographic limits of the trap and trace order. [¶] (4) A statement of the offense to which the information likely to be obtained by the pen register or trap and trace device relates. [¶] (5) The order shall direct, if the applicant has requested, the furnishing of information, facilities, and technical assistance necessary to accomplish the installation of the pen register or trap and trace device.” (Ibid., italics added.)

However, even though subdivision (b) of section 638.52 (pertaining to peace officer applications) refers to telephone lines as to certain subparts, the definitions governing the application to section 638.51 (which proscribes certain conduct by persons) are nonetheless expansive. The prohibitions on persons generally include potential application to a “process that records” “signaling information” “by an instrument or facility” that “transmit[s]” “signs, signals, writings, images, sounds, data, or intelligence of any nature in whole or in part by a wire, radio, electromagnetic, photoelectric, or photo-optical system.” (Pen. Code, §§ 629.51, subd. (a)(2), 638.50, subds. (a), (b), 638.51, subd. (a).) It is apparent that Penal Code section 638.51, subdivision (a), applies to more than just telephone lines and mechanical devices.

“[T]he Court cannot ignore the expansive language in the California Legislature’s chosen definition [of a pen register]. The definition is specific as to the type of data a pen register collects—‘dialing, routing, addressing, or signaling information transmitted by an instrument or facility from which a wire or electronic communication is transmitted,’ but it is vague and inclusive as to the form of the collection tool—‘a device or process.’ [Citation.] This indicates Courts should focus less on the form of the data collector and more on the result. Thus, the Court applies the plain meaning of a ‘process’ to the statute. A process can take many forms. Surely among them is software that identifies consumers, gathers data, and correlates that data through unique ‘fingerprinting.’ ” (Greenley v. Kochava, Inc. (S.D. Cal. 2023) 684 F.Supp.3d 1024, 1050 (Greenley).)

Neither party has cited the Court to any on-point California appellate authority on this issue. The Court has reviewed the recent federal district Court cases on this subject. These arguments by Defendants “have been consistently rejected by the federal Courts.” (Maketa v. Valnet Inc. (N.D. Cal., Feb. 6, 2026, No. 25-CV-05517-RS) 2026 WL 323126, at *1.) “Numerous Courts in this district ... have already found [these software applications] to be ‘pen registers’ at the pleading stage.” (Kryzek

v. OpenX Technologies, Inc. (N.D. Cal. 2026) 817 F.Supp.3d 857, 870.) The primary case cited by Defendants followed this majority view in the federal district Courts: “[T]he Court is at this time inclined to follow what is currently the majority rule in federal district Courts. Accordingly, the pen register statute applies to internet communications and does not bar Plaintiffs’ claim here.” (In re Apple Data Privacy Litigation (N.D. Cal. 2026) 824 F.Supp.3d 888, 897.) The Court finds the analyses provided in these cases is consistent with the language of the statute and more persuasive than the arguments presented by Defendants.

The Court finds that the alleged use of the software code to obtain and link Plaintiffs’ IP address with other private, identifying information is sufficient to allege a pen register at the pleading stage in this case. “Plaintiff has alleged each necessary element of this claim: Defendant installed a pen register without a Court order.” (Greenley, supra, 684 F.Supp.3d at pp. 1050–1051; see Pen. Code, § 638.51, subd. (a).) For all these reasons the Court will overrule the demurrer to this COA.

(5) Sixth COA for Common Law Invasion of Privacy

“A privacy violation based on the common law tort of intrusion has two elements. First, the Defendant must intentionally intrude into a place, conversation, or matter as to which the Plaintiff has a reasonable expectation of privacy. Second, the intrusion must occur in a manner highly offensive to a reasonable person.” (Hernandez v. Hillsides, Inc. (2009) 47 Cal.4th 272, 286.) Defendants argue the complaint fails to allege these elements. However, Plaintiffs allege they “have a reasonable expectation of privacy regarding their housing and other information. RentCafe’s actions are particularly offensive to social norms because it shared data with Google, Microsoft, and Meta despite visitors’ clear indication that they did not wish to be tracked. RentCafe’s decision to ignore users’ preference to reject or otherwise customize cookies violates social norms.” (Comp., ¶ 261.) The Court finds that Plaintiffs have alleged the elements of this COA. (Comp., ¶¶ 259-270.) The Court will overrule the demurrer to this COA.

(6) Claims against Yardi

Defendants argue that the complaint fails to allege facts establishing liability for Yardi. The complaint alleges that “Yardi owns and operates RentCafe, which offers apartment search and management functions to millions of Americans through its website, RentCafe.com.” (Comp., ¶ 3.) “Any person who has been injured by a violation of this chapter may bring an action against the person who committed the violation” (Pen. Code, § 637.2, subd. (a).) Because the complaint alleges that Yardi operates the website at issue and thereby caused the violations, these allegations are sufficient at the pleading stage to state claims against Yardi in addition to RentCafe. (Ibid.)

(7) Defendants’ Request for Judicial Notice

Defendants ask the Court to take judicial notice of: a printout of the RentCafe Privacy Statement dated May 21, 2025; a printout of Yardi’s Privacy Policy dated July 24, 2023; a printout of RentCafe’s Cookie Notice dated March 17, 2020; a printout of a screenshot of RentCafe’s Cookie Banner taken on February 9, 2026; a printout of the Google Analytics Terms of Service dated June 17, 2019; a printout of the Microsoft Clarity Terms of Use; a printout of the Google Privacy Policy dated January 15, 2024. (See RJN.)

“ ‘Judicial notice may not be taken of any matter unless authorized or required by law.’ [Citation.] Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. [Citation.] Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable.... In ruling on a demurrer, a Court may consider facts of which it has taken judicial notice. [Citation.] This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable.” (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 113 (Fremont), italics in original.)

“On a demurrer a Court’s function is limited to testing the legal sufficiency of the complaint. [Citation.] ‘A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.’ [Citation.] The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the Court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (Fremont, supra, 148 Cal.App.4th at pp. 113–114.) The Court declines to take judicial notice of the various printouts submitted by Defendants and interpret and apply them at the pleading stage as requested.

Judges

Judge Thomas Anderle

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